



Bill Number: S.B. 1496

Werner Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires the Department of Child Safety (DCS) to remain a child's representative payee only as long as no other appropriate person is available.
2. Requires DCS to document and file with the court its efforts to identify an appropriate representative payee outside DCS within 30 days after approval by the Social Security Administration and at each subsequent review or permanency hearing.
3. Requires DCS to consult with the parties to the case, rather than the child and the child's attorney, regarding whether someone other than DCS is available to serve as the child's representative payee, and to reassess that availability annually, on request of the child or the child's attorney and whenever circumstances change.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1496
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-468, Arizona Revised Statutes, is amended to
3 read:

4 8-468. Federal benefits; dependent children; application;
5 prohibition; accounting; notice; annual review

6 A. For all children in the care of the department of child safety,
7 the department ~~of child safety~~ shall determine whether each child is
8 receiving or eligible for benefits administered by the social security
9 administration or the veterans administration within sixty days after the
10 child enters the department's care. If the department ~~of child safety~~
11 determines that a child is eligible or may be eligible for federal
12 benefits, the department ~~of child safety~~ shall apply for the benefits on
13 behalf of the child.

14 B. If a child is already receiving benefits before entering the
15 department's care or if the department applies for benefits on behalf of
16 the child, the department shall ~~identify, in consultation with the child~~
17 ~~and the child's attorney, a representative payee in accordance with 20~~
18 ~~Code of Federal Regulations sections 404.2021 and 416.621 and shall apply~~
19 ~~to become the representative payee only if no other suitable candidate is~~
20 ~~available~~ APPLY TO SERVE AS THE REPRESENTATIVE PAYEE UNTIL SOMEONE OTHER
21 THAN THE DEPARTMENT IS APPOINTED TO SERVE AS THE REPRESENTATIVE PAYEE. If
22 the department ~~of child safety~~ is appointed to serve as the representative
23 payee, the department:

24 1. May not use the child's federal benefits, other benefits,
25 savings or assets to pay for or to reimburse the department ~~of child~~
26 ~~safety~~ or this state for any of the costs of the child's care.

27 2. May use the child's federal benefits for the child's unmet needs
28 beyond what the department ~~of child safety~~ is obligated, IS required or
29 agrees to pay.

1 3. Shall establish an appropriate account to use and conserve the
2 child's benefits in the child's best interest for current unmet needs and
3 future needs in a manner consistent with federal and state asset and
4 resource limits. The account may include any of the following:

5 (a) A special needs trust.

6 (b) A pooled special needs trust.

7 (c) An achieving a better life experience account established
8 pursuant to section 529a of the internal revenue code.

9 (d) Any other trust account determined not to interfere with social
10 security or asset limitations for any other benefit program.

11 4. In addition to the requirements ~~of~~ **PRESCRIBED IN** section
12 14-9115, shall provide an annual accounting as to the use, application or
13 conservation of the child's federal benefits to the child, the child's
14 attorney and the child's parents or guardians.

15 ~~[5. Shall periodically review if someone other than the department~~
16 ~~is available to apply to assume the role of representative payee and could~~
17 ~~better serve in that role in the child's best interests. AT THE REQUEST~~
18 ~~OF THE CHILD, THE DEPARTMENT SHALL CONSULT WITH THE CHILD AND THE CHILD'S~~
19 ~~ATTORNEY REGARDING WHETHER SOMEONE OTHER THAN THE DEPARTMENT IS AVAILABLE~~
20 ~~TO APPLY TO ASSUME THE ROLE OF REPRESENTATIVE PAYEE.]~~

21 [5. FOLLOWING THE INITIAL APPLICATION TO SERVE AS THE
22 REPRESENTATIVE PAYEE, SHALL REMAIN THE REPRESENTATIVE PAYEE ONLY IF NO
23 OTHER APPROPRIATE PERSON IS AVAILABLE TO SERVE AS THE REPRESENTATIVE
24 PAYEE. WITHIN THIRTY DAYS AFTER THE APPLICATION TO SERVE AS THE
25 REPRESENTATIVE PAYEE IS APPROVED BY THE SOCIAL SECURITY ADMINISTRATION AND
26 AT EACH SUBSEQUENT REPORT AND REVIEW HEARING OR PERMANENCY PLANNING
27 HEARING, THE DEPARTMENT SHALL FILE WITH THE COURT DOCUMENTATION OF THE
28 DEPARTMENT'S EFFORTS TO IDENTIFY AN APPROPRIATE PERSON WHO IS OUTSIDE OF
29 THE DEPARTMENT AND WHO COULD BETTER SERVE AS THE REPRESENTATIVE PAYEE.

30 6. NOT LATER THAN AN ANNUAL SCREENING OR ON THE REQUEST OF THE
31 CHILD OR THE CHILD'S ATTORNEY, SHALL CONSULT WITH THE PARTIES TO THE CASE
32 TO DETERMINE IF AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT,
33 AND ON APPROVAL BY THE SOCIAL SECURITY ADMINISTRATION, COULD BETTER SERVE
34 AS THE REPRESENTATIVE PAYEE. THE DEPARTMENT SHALL ALSO CONSULT WITH THE
35 PARTIES WHENEVER A CHANGE IN CIRCUMSTANCES OCCURS THAT MIGHT MAKE AN
36 APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT AVAILABLE TO SERVE AS
37 THE REPRESENTATIVE PAYEE.]

38 C. The department ~~of child safety~~ shall notify the child, the
39 child's parents, unless parental rights have been terminated, the child's
40 guardian, the child's current placement and the child's attorney of any
41 application, decision or appeal related to a child's federal benefits. In
42 providing notice of any denial of benefits, the department shall consult
43 with the child's attorney and appeal the denial if it is in the child's
44 best interests.

45 D. The department shall annually review cases of children in the
46 department's care to determine whether a child may have become eligible
47 for benefits after the department's initial assessment.

1 E. Notwithstanding any other law, on termination of the
2 department's responsibility for the child, the department shall release
3 any monies remaining to the child's credit pursuant to the requirements of
4 the funding source or, in the absence of any requirements, shall release
5 the remaining monies to:

6 1. The child, if the child is at least eighteen years of age or is
7 emancipated.

8 2. The person who is responsible for the child if the child is a
9 minor and IS not emancipated.

10 Sec. 2. Section 8-514.07, Arizona Revised Statutes, is amended to
11 read:

12 8-514.07. Kinship foster care: relative identification and
13 notification; due diligence search

14 A. If a child is taken into temporary custody, as part of the
15 ongoing search, the department shall use due diligence in an initial
16 search to identify and notify adult relatives of the child and persons
17 with a significant relationship with the child within thirty days after
18 the child is taken into temporary custody.

19 B. The search to identify adult relatives of the child or persons
20 with a significant relationship with the child must include:

21 1. An interview with the child's parent.

22 2. An interview with the child.

23 3. Interviews with identified adult relatives.

24 4. Interviews with other persons who are likely to have information
25 regarding the location of adult relatives of the child or persons with a
26 significant relationship with the child.

27 5. A comprehensive search of available records that are likely to
28 help identify and locate a person being sought, including:

29 (a) Employment records.

30 (b) Vehicle registration records.

31 (c) Child support enforcement records.

32 (d) Utility accounts.

33 (e) Previous residential addresses.

34 (f) Law enforcement records.

35 (g) State department of corrections records.

36 6. Thorough inquiries by the court of the parties during case
37 hearings.

38 7. Any other means the department deems likely to identify adult
39 relatives of the child or persons with a significant relationship with the
40 child.

41 C. Within thirty days after the child is taken into temporary
42 custody and at each subsequent review and report hearing or permanency
43 planning hearing, the department shall file with the court ~~documentation~~
44 AN INITIAL REPORT regarding attempts made pursuant to this section or as
45 otherwise required by the court to identify and notify adult relatives of
46 the child and persons with a significant relationship with the child.
47 This ~~documentation~~ INITIAL REPORT shall include a detailed narrative

1 explaining the department's efforts to consider each potential placement
2 and the specific outcome. THE DEPARTMENT SHALL UPDATE THE INITIAL REPORT
3 THAT IS FILED PURSUANT TO THIS SUBSECTION AT EACH SUBSEQUENT REPORT AND
4 REVIEW HEARING OR PERMANENCY PLANNING HEARING WITH ANY NEW INFORMATION
5 THAT HAS BEEN OBTAINED SINCE THE FILING OF THE LAST REPORT.

6 D. The department shall provide notice to adult relatives of the
7 child and persons with a significant relationship with the child who are
8 identified through the search requirements of this section. The notice
9 shall do the following:

10 1. Specify that the child has been or is being removed from the
11 child's parental custody.

12 2. Explain the options an adult relative of the child or a person
13 with a significant relationship with the child has to participate in the
14 care or placement of the child.

15 3. Explain that financial assistance and other forms of support are
16 available to adult relatives of the child and persons with a significant
17 relationship with the child with whom the child is placed.

18 4. Describe the process for becoming a licensed foster parent and
19 the additional services and support that are available for children placed
20 in approved foster homes.

21 5. Require an adult relative of the child or a person with a
22 significant relationship with the child to respond within thirty days
23 after receiving notice that the child has been removed from the home.

24 E. If the child is not placed with an adult relative of the child
25 or person with a significant relationship with the child or the child is
26 placed with an adult relative or person with a significant relationship
27 with the child who is unable or unwilling to provide permanent placement
28 for the child, the department shall continue to conduct an ongoing search
29 for adult relatives of the child or persons with a significant
30 relationship with the child. ~~The department shall engage in search~~
31 ~~efforts~~

32 F. If, AFTER THE PERMANENCY HEARING HELD PURSUANT TO SECTION 8-862,
33 THE DEPARTMENT AND THE COURT DETERMINE THAT A CHILD IS PLACED WITH A
34 PROSPECTIVE PERMANENT PLACEMENT, THE DEPARTMENT MAY STOP SEARCH EFFORTS
35 UNLESS ordered by the court, a change in the child's placement occurs or a
36 party shows that the search is in the best interest of the child.

37 ~~F.~~ G. The department shall file with the court documentation of
38 both of the following:

39 1. The completed due diligence search efforts. This documentation
40 shall include:

41 (a) The names of and relevant information about adult relatives of
42 the child or persons with a significant relationship with the child.

43 (b) The steps taken by the department to locate and contact adult
44 relatives of the child or persons with a significant relationship with the
45 child.

46 (c) The responses received from adult relatives of the child or
47 persons with a significant relationship with the child.

1 (d) The dates of each attempted or completed contact with an adult
2 relative of the child or a person with a significant relationship with the
3 child.

4 (e) The reasons why an adult relative of the child or a person with
5 a significant relationship with the child was not considered for temporary
6 or permanent placement of the child.

7 2. All efforts for placement of the child through an interstate
8 compact agreement pursuant to section 8-548. This documentation shall
9 include:

10 (a) The names of adult relatives of the child or persons with a
11 significant relationship with the child who were considered for an
12 interstate placement.

13 (b) Any pending placement of the child through an interstate
14 compact agreement.

15 (c) All potential out-of-state placements outside of an interstate
16 compact agreement and the reasons such placements have not been initiated.

17 ~~G.~~ H. If an out-of-state placement option exists and the
18 department has failed to file a request with the receiving state pursuant
19 to the requirements of an interstate compact agreement pursuant to section
20 8-548, the court shall enter a finding that the department has not made a
21 due diligence search and shall order the department to file a request with
22 the receiving state pursuant to the terms of the interstate compact
23 agreement.

24 Sec. 3. Section 8-810, Arizona Revised Statutes, is amended to
25 read:

26 8-810. Missing; abducted; runaway children; notification;
27 training; audit

28 A. Immediately or within twenty-four hours after receiving a report
29 made pursuant to section 13-3620 or receiving information during the
30 course of providing services that indicates a child who is a ward of the
31 court or who is in the care of the department is missing, abducted or a
32 runaway and the child's location is unknown, the department shall notify
33 the appropriate law enforcement agency to make the record entry as
34 follows:

35 1. For an abducted child, the Arizona criminal justice information
36 system.

37 2. For an abducted, missing or runaway child, the national crime
38 information center missing person database.

39 B. Immediately or within twenty-four hours after receiving a report
40 of a missing, abducted or runaway child, the department shall do the
41 following:

42 1. Report information on the missing, abducted or runaway child to
43 the national center for missing and exploited children.

44 2. Unless it is determined by the primary investigative agency that
45 it will hinder investigation or location efforts: ~~;~~

46 (a) Contact the following persons to obtain information about the
47 child's disappearance:

- 1 ~~(a)~~ (i) The child's parents.
2 ~~(b)~~ (ii) The child's known relatives.
3 ~~(c)~~ (iii) The child's out-of-home caregivers.
4 ~~(d)~~ (iv) The child's attorney.
5 ~~(e)~~ (v) The child's guardian or guardian ad litem.
6 ~~(f)~~ (vi) The child's court appointed special advocate.
7 ~~(g)~~ (vii) The child's school, friends or household members or
8 other persons who may have relevant information about the circumstances
9 surrounding the child's abduction or disappearance.
10 ~~(h)~~ (viii) Any other persons known to the department who may have
11 relevant information regarding the child's location.
12 ~~3. Unless it is determined by the primary investigative agency that~~
13 ~~it will hinder investigation or location efforts,~~
14 (b) Provide a notice of disappearance in writing ~~and~~ OR
15 telephonically to the following persons:
16 ~~(a)~~ (i) The child's parents.
17 ~~(b)~~ (ii) The child's known relatives.
18 ~~(c)~~ (iii) The child's out-of-home caregivers.
19 ~~(d)~~ (iv) The child's attorney.
20 ~~(e)~~ (v) The child's guardian or guardian ad litem.
21 ~~(f)~~ (vi) The child's court appointed special advocate.
22 ~~(g)~~ (vii) A judicial officer in any judicial matter involving the
23 child.
24 ~~(h)~~ (viii) The duty assistant attorney general to initiate a
25 motion for a pickup.
26 ~~(i)~~ (ix) If the child is a member of an Indian tribe in this
27 state, the child's Indian tribe.
28 C. Immediately or within twenty-four hours after receiving a report
29 PURSUANT TO THIS SECTION, the department shall request the appropriate law
30 enforcement agency to determine if the situation meets amber alert
31 criteria or ~~silver~~ SEEK AND FIND alert criteria pursuant to section
32 41-1728. The appropriate law enforcement agency shall document its
33 response regarding amber alert or ~~silver~~ SEEK AND FIND alert criteria.
34 D. Within forty-eight hours after receiving a report of a missing,
35 abducted or runaway child, the department shall provide the local law
36 enforcement agency with, and the local law enforcement agency shall
37 provide to all local media outlets and post to social media platforms, all
38 of the following information regarding the child and, if known, the
39 child's abductor:
40 1. A complete physical description of the child and, if known, the
41 child's abductor.
42 2. The last known location of the child or, if known, the child's
43 abductor.
44 3. A description of the clothing the child or, if known, the
45 child's abductor was last known to be wearing.
46 4. A description of any vehicle that may be involved with the
47 child's disappearance.

1 5. Current photos of the child and, if available, the child's
2 abductor.

3 6. A law enforcement telephone number.

4 7. Information regarding any offered rewards.

5 E. The appropriate law enforcement agency shall update social media
6 platforms with updated information regarding the missing, abducted or
7 runaway child.

8 F. For a child who has been missing or abducted or who has been a
9 runaway for two or more years, the appropriate law enforcement agency
10 shall work, when possible, to create an age-appropriate progression image
11 of the child.

12 G. The department shall do all of the following on an ongoing basis
13 until a missing, abducted or runaway child is located or the child reaches
14 the age of majority:

15 1. Document in writing every effort the department has made to
16 locate the missing, abducted or runaway child within ten days after the
17 effort to locate the child is taken. The written document shall specify
18 the notifications and documentation sent to individuals and departments
19 pursuant to the requirements of this section.

20 2. Contact law enforcement every seven calendar days and document
21 the information provided and received.

22 3. For a child who has been missing or abducted or who has been a
23 runaway for two or more years, work with the national center for missing
24 and exploited children to create an age-progression image of the child.

25 H. The department shall immediately develop, refine, implement and
26 provide initial training to newly hired employees. A newly hired employee
27 must receive this initial training before any children are assigned to the
28 newly hired employee's caseload. The department shall conduct annual
29 training for department employees who have direct oversight of children
30 and the direct supervisors of those employees. The training shall include
31 department policies for locating missing, abducted or runaway children and
32 the requirements for ongoing efforts to locate a missing, abducted or
33 runaway child, unless it is determined by the primary investigative agency
34 that it will hinder investigation or location efforts. Monthly ongoing
35 department efforts shall include all of the following:

36 1. Continued contact with law enforcement agencies.

37 2. Continued contact with the child's parents, guardian or
38 custodian.

39 3. Continued contact with the child's known relatives.

40 4. Continued contact with current and former foster families of the
41 child.

42 5. Continued contact with the child's school.

43 6. Continued contact with known acquaintances of the child.

44 7. Continued in-person searching of locations and places where the
45 child may be found.

46 8. Continued review of any social media accounts that may be
47 associated with the child or the child's known acquaintances.

1 9. Continued efforts with law enforcement agencies in searching for
2 the child.

3 10. Continued search efforts with department field staff who have
4 access to databases that may help in the search for information or leads
5 regarding the missing, abducted or runaway child.

6 11. Referral to the department's office of child welfare
7 investigations for assistance if exigent circumstances exist.

8 12. Requesting that the appropriate law enforcement agency conduct
9 welfare checks at any location where the child may be.

10 I. Within twenty-four hours after a missing, abducted or runaway
11 child is located, the department shall do all of the following:

12 1. Inform all of the following:

13 (a) All law enforcement agencies involved in the child's case.

14 (b) The attorney general's office.

15 (c) The national center for missing and exploited children.

16 (d) Any individuals who have received notice pursuant to subsection
17 B, paragraph 3 of this section.

18 2. Have in-person contact with the child.

19 3. Obtain a medical exam for the child.

20 4. Assess the child's experiences while absent from care, including
21 screening to determine if the child is a sex trafficking victim, and
22 report to the appropriate law enforcement agency if it is determined that
23 the child is a sex trafficking victim.

24 5. Assess the appropriateness of the child returning to the child's
25 current placement.

26 6. Assess factors that contributed to the child's absence.

27 7. Determine the need for additional behavioral health services and
28 support.

29 8. Review the case to assess the primary factors that contributed
30 to the child being missing or abducted or a runaway and to the extent
31 possible and appropriate respond to those factors in current and
32 subsequent case decisions.

33 J. Within sixty days after September 14, 2024, the department shall
34 develop a checklist for department specialists. The checklist shall be
35 distributed to each caseworker to assist department specialists in
36 fulfilling the department's duties prescribed by this section. The
37 checklist shall have a mechanism to mark department duties as completed
38 within the timelines specified by this section.

39 K. Beginning ninety days after September 14, 2024, the department
40 shall provide a monthly report to the governor, the president of the
41 senate and the speaker of the house of representatives. The report shall
42 include all of the following:

43 1. The names of all current missing, abducted or runaway children.
44 The names of missing, abducted or runaway children shall be kept
45 confidential and may not be distributed outside of the monthly report.

46 2. An acknowledgement that the department made the notifications
47 prescribed by this section within the prescribed time frames. If the

1 department failed to make the notifications ~~with~~ **WITHIN** the prescribed
2 time frames, the department shall include a detailed explanation of the
3 reason why the notifications were not made within the prescribed time
4 frames.

5 3. The department's compliance with ongoing search efforts made to
6 locate missing, abducted or runaway children.

7 4. The department's compliance with subsection I of this section.

8 5. On the return of a runaway child to the department's care, the
9 reason why the child ran away.

10 L. Within one hundred fifty days after September 14, 2024 and on a
11 monthly basis thereafter, the department shall submit to the joint
12 legislative budget committee, the senate health and human services
13 committee and the house of representatives health and human services
14 committee, or their successor committees, a report that includes all of
15 the following:

16 1. The department's compliance with all of the requirements of this
17 section.

18 2. The number of missing, abducted and runaway children.

19 3. The number of missing, abducted and runaway children who have
20 been found.

21 4. The percentage of times the department was in compliance with
22 the requirements prescribed in subsections A, B, C and D of this section.

23 M. If the report submitted pursuant to subsection L of this section
24 shows a less than ninety-five percent compliance rate with the
25 requirements prescribed in subsection L, paragraph 4 of this section for
26 more than four consecutive or nonconsecutive months in a twelve-month
27 period, the department shall establish a missing, abducted and runaway
28 children unit within the department. The missing, abducted and runaway
29 children unit shall have at least four employees with at least one
30 employee available twenty-four hours a day. The missing, abducted and
31 runaway children unit may enter into contracts with any vendor necessary
32 to ensure the department is in compliance with this section. If the
33 missing, abducted and runaway children unit is established, the unit shall
34 submit a report to the governor, the president of the senate, the speaker
35 of the house of representatives and the joint legislative oversight
36 committee on the department of child safety established by section
37 41-1292. The report shall do all of the following:

38 1. Identify the reasons why the department is not in compliance
39 with the requirements prescribed in subsections A, B, C and D of this
40 section.

41 2. Identify the methods by which the missing, abducted and runaway
42 children unit will achieve a ninety-five percent compliance rate with the
43 requirements prescribed in subsections A, B, C and D of this section.

44 3. Include organizational changes that the department will make to
45 ensure compliance with the requirements prescribed in subsections A, B, C
46 and D of this section.

1 4. Recommend legislative changes that are necessary to ensure the
2 department's compliance with the requirements prescribed in subsections A,
3 B, C and D of this section.

4 N. The legislature may convene an oversight committee to address
5 problems and deviations from policy and procedure and recommend corrective
6 action plans. The legislature shall request an annual independent audit
7 of the department's compliance with this section. If the independent
8 audit determines that the department is not in compliance, the department
9 shall contract with a consulting firm that is licensed by this state for
10 investigative services. The consulting firm shall present recommendations
11 to the oversight committee on how to improve compliance with this section.

12 O. The legislature may convene the joint legislative oversight
13 committee on the department of child safety established by section 41-1292
14 to address concerns and deviations from policy and procedure and provide
15 recommendations. The legislature may request an annual independent audit
16 of the department's compliance with this section. If the independent
17 audit determines that the department is not in compliance, the independent
18 audit shall provide recommendations for improving the department's efforts
19 to locate missing, abducted or runaway children. If the joint legislative
20 oversight committee on the department of child safety determines that the
21 department, after the establishment of the missing, abducted and runaway
22 children unit, has failed to meet the requirements of subsection M of this
23 section for a period of more than two months, the department shall
24 contract with a consulting firm that is licensed by this state for
25 investigative services. The consulting firm shall present recommendations
26 to the joint legislative oversight committee **ON THE DEPARTMENT OF CHILD**
27 **SAFETY** on how to improve compliance with this section.

28 Sec. 4. Section 8-811, Arizona Revised Statutes, as amended by Laws
29 2024, chapter 47, section 5, is amended to read:

30 8-811. Hearing process; definitions

31 A. The department shall notify a person who is alleged to have
32 abused or neglected a child that the department intends to substantiate
33 the allegation in the central registry pursuant to section 8-804 and of
34 that person's right:

35 1. To receive a copy of the report containing the allegation.

36 2. To a hearing before the entry into the central registry.

37 B. The department shall provide the notice prescribed in subsection
38 A of this section by first class mail or by personal service no more than
39 fourteen days after completion of the investigation.

40 C. A request for a hearing on the proposed finding must be received
41 by the department within twenty days after the mailing or personal service
42 of the notice by the department.

43 D. The department shall not disclose any information related to the
44 investigation of the allegation except as provided in sections 8-456,
45 8-807, 8-807.01 and 13-3620.

46 E. If a request for a hearing is made pursuant to subsection C of
47 this section, the department shall conduct a review before the hearing.

1 The department shall provide an opportunity for the accused person to
2 provide written or verbal information to support the position that the
3 department should not substantiate the allegation. If the department
4 determines that ~~there is no probable cause that the accused person engaged~~
5 ~~in the alleged conduct~~ THE PROPOSED FINDING IS NOT SUPPORTED BY A
6 PREPONDERANCE OF THE EVIDENCE, the department shall amend the information
7 or finding in the report and shall notify the person and a hearing shall
8 not be held.

9 F. Notwithstanding section 41-1092.03, the notification prescribed
10 in subsection A of this section shall also state that if the department
11 does not amend the information or finding in the report as prescribed in
12 subsection E of this section within sixty days after it receives the
13 request for a hearing the person has a right to a hearing unless:

14 1. The person is a party in a pending civil, criminal or
15 administrative proceeding in which the allegations of abuse or neglect are
16 at issue.

17 2. The person is a party in a pending juvenile proceeding in which
18 the allegations of abuse or neglect are at issue.

19 3. A court or administrative law judge has made findings as to the
20 alleged abuse or neglect.

21 4. A court has found that a child is dependent or has terminated a
22 parent's rights based on an allegation of abuse or neglect.

23 G. If the court or administrative law judge in a pending proceeding
24 described in subsection F, paragraph 1 or 2 of this section does not make
25 a finding of abuse or neglect and the matter is no longer pending in that
26 forum, the person has a right to a hearing pursuant to subsection F of
27 this section.

28 H. If the court or administrative law judge in a proceeding
29 described in subsection F of this section has made a finding of abuse or
30 neglect, the finding shall be entered into the central registry as a
31 substantiated report.

32 I. If the department does not amend the information or finding in
33 the report as prescribed in subsection E of this section, the department
34 shall notify the office of administrative hearings of the request for a
35 hearing ~~no~~ NOT later than five days after completion of the review. The
36 department shall forward all records, reports and other relevant
37 information with the request for hearing within ten days. The department
38 shall redact the identity of the reporting source before transmitting the
39 information to the office of administrative hearings.

40 J. The office of administrative hearings shall hold a hearing
41 pursuant to title 41, chapter 6, article 10, with the following
42 exceptions:

43 1. A child who is the victim of or a witness to abuse or neglect is
44 not required to testify at the hearing.

45 2. A child's hearsay statement is admissible if the time, content
46 and circumstances of that statement are sufficiently indicative of its
47 reliability.

1 3. The identity of the reporting source of the abuse or neglect
2 shall not be disclosed without the permission of the reporting source.

3 4. The reporting source is not required to testify.

4 5. A written statement from the reporting source may be admitted if
5 the time, content and circumstances of that statement are sufficiently
6 indicative of its reliability.

7 6. If the person requesting the hearing fails to appear, the
8 hearing shall be vacated and a substantiated finding of abuse or neglect
9 shall be entered. On good cause shown, the hearing may be rescheduled if
10 the request is made within fifteen calendar days after the date of the
11 notice vacating the hearing for failure to appear.

12 K. On completion of the presentation of evidence, the
13 administrative law judge shall determine if ~~probable cause exists to~~
14 ~~sustain the department's finding that the parent, guardian, employee of a~~
15 ~~child welfare agency where the child was placed that was licensed by and~~
16 ~~contracted with the department at the time of the abuse or custodian~~
17 ~~abused the child or the parent, guardian or custodian neglected the child~~
18 ~~THE PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE.~~ If
19 the administrative law judge determines that ~~probable cause exists to~~
20 ~~sustain the department's finding of abuse or neglect~~ ~~THE PROPOSED FINDING~~
21 ~~IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE,~~ the sustained finding
22 shall be entered into the central registry as a substantiated report. If
23 the administrative law judge determines that ~~probable cause does not exist~~
24 ~~to sustain the department's finding~~ ~~THE PROPOSED FINDING IS NOT SUPPORTED~~
25 ~~BY A PREPONDERANCE OF THE EVIDENCE,~~ the administrative law judge shall
26 order the department to amend the information or finding in the report.

27 L. When the department is requested to verify pursuant to section
28 8-807, if the central registry contains a substantiated report about a
29 specific person, the department shall determine if the report was taken
30 after January 1, 1998. If the report was taken after January 1, 1998, the
31 department shall notify the requestor of the substantiated finding. If
32 the report was taken before January 1, 1998, the department shall notify
33 the person of the person's right to request an administrative
34 hearing. The department shall not send this notification if the person
35 was a party in a civil, criminal or administrative proceeding in which the
36 allegations of abuse or neglect were at issue. The provisions of this
37 section shall apply to the person's appeal.

38 M. The department shall provide the parent, guardian or custodian
39 who is the subject of the investigation and the person who reported the
40 suspected child abuse or neglect if that person is the child's parent,
41 guardian or custodian with a copy of the outcome of the investigation at
42 one of the following times:

43 1. If the report is unsubstantiated.

44 2. If ~~probable cause exists that abuse or neglect has occurred~~ ~~THE~~
45 ~~PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE~~ but a
46 specific person is not identified as having abused or neglected the child.

1 3. After the time to request a hearing has lapsed pursuant to
2 subsection C of this section without the department receiving a request
3 for a hearing.

4 4. After a final administrative decision has been made pursuant to
5 section 41-1092.08.

6 N. For the purposes of this section:

7 1. "Amend the finding" means to change the finding from
8 substantiated to unsubstantiated.

9 2. "Amend the information" means to change information identifying
10 the accused of having abused or neglected a child.

11 Sec. 5. Repeal

12 Section 8-811, Arizona Revised Statutes, as amended by Laws 2024,
13 chapter 127, section 5, is repealed.

14 Enroll and engross to conform

15 Amend title to conform

CARINE WERNER

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